This pamphlet is intended to provide the voters of Nebraska with additional information about the measures proposed via the initiative petition process that will appear on the November 3, 2026 General Election ballot.

Each measure contains three portions: the language which will appear on the November ballot, the text of the measure, and arguments supporting and opposing the measure. The arguments are derived from information provided to the Secretary of State from supporters and opponents of these measures.

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INITIATIVE MEASURE 442

Ballot Title and Text for Initiative Measure 442

Proposed by Initiative Petition

A vote "FOR" will amend the Nebraska Constitution to provide: (1) Schools must expressly designate each athletic team or sport as one of the following based on biological sex: (a) Males, men, or boys; (b) females, women, or girls; or (c) coed or mixed; and (2) Athletic teams or sports designated for females, women, or girls shall not be open to students of the male sex. The amendment would apply to all athletic teams or sports sponsored by public schools or postsecondary educational institutions, and private schools or educational institutions whose athletic teams or sports compete against public schools or institutions.

A vote "AGAINST" means the Nebraska Constitution will not be amended in this manner.

Shall the Nebraska Constitution be amended to provide: (1) Schools must expressly designate each athletic team or sport as one of the following based on biological sex: (a) Males, men, or boys; (b) females, women, or girls; or (c) coed or mixed; and (2) Athletic teams or sports designated for females, women, or girls shall not be open to students of the male sex? The amendment would apply to all athletic teams or sports sponsored by public schools or postsecondary educational institutions, and private schools or educational institutions whose athletic teams or sports compete against public schools or institutions.

◯ For

◯ Against

Full Text of Proposed Initiative Measure 442

OBJECT STATEMENT: The object of this petition is to amend the Nebraska Constitution to establish constitutional protections for sex-separate athletics to ensure equal access to athletic opportunities for females.

Proposed Constitutional Amendment Language

(underscored language indicates added language, ~~strike through~~ indicates language being removed)

TEXT: Article VII of the Constitution of Nebraska shall be amended by adding a new section 16 as shown:

Art. VII §16. Equal access to athletic opportunities for females.

(1) Schools must expressly designate each athletic team or sport as one of the following based on biological sex: (a) Males, men, or boys; (b) females, women, or girls; or (c) coed or mixed.

(2) Athletic teams or sports designated for females, women, or girls pursuant to subsection (1) of this section shall not be open to students of the male sex.

(3) For purposes of this section, "schools" shall mean interscholastic, intercollegiate, and intramural athletic teams or sports that are sponsored by a common school of this state, a public postsecondary educational institution of this state, or any school or institution of learning in this state not owned or exclusively controlled by the state or a political subdivision thereof whose athletic teams or sports compete against a common school or public postsecondary educational institution of this state.

(4) This section shall be self-executing, but legislation may be enacted to facilitate its operation. If any part or parts of this section are

found to conflict with federal law or the Constitution of the United States, this section shall be implemented to the maximum extent permitted by federal law and the Constitution of the United States. Any provision held invalid shall be severable from the remaining portions of this section.

Arguments For and Against Initiative Measure 442

Supporters contend:

Initiative 442, Fairness for Girls, protects fairness, opportunities, and safety for Nebraska girls in sports. It establishes constitutional protections for sex-separated athletics in Nebraska grade schools, high schools, and colleges. Fairness for Girls ensures female athletes are not forced to compete against biological males. Allowing biological males to compete against girls poses safety risks because of physical differences in strength, bone density, and size, increasing the likelihood of injury. The initiative protects female athletes from losing scholarships, medals, or tournament advancement after being displaced in rankings by biological males. Fairness for Girls protects every girl's opportunity to succeed on a fair playing field.

Opponents contend:

Initiative 442 adds unnecessary limits on participation in girls' sports into the Nebraska State Constitution. Initiative 442 raises significant concerns about fairness and privacy by making gender verification constitutionally required for girls and young women who want to play sports at their public school, college or university, but would not place a similar requirement on boys and young men. It would also empower bad actors to unfairly cast doubt on young athletes who don't fit within traditional gender expectations. Proponents say that this measure is about promoting fairness and safety by ensuring transgender girls cannot participate, but it would actually subject all girls to greater barriers and risk of harm and create a constitutional right to bully kids about their appearance. Vote AGAINST 442.